

Message History (7)

On 9/21/2026 4:45:04 PM, Brian C wrote:

TO: "San Mateo Public Records Center"[sanmateoca@mycusthelp.net]
Juliana,

Civil Code § 1798.90.51(a) (ALPR operator) and § 1798.90.53(a) (ALPR end-user) — cited by number in my original August 19 request, repeated in my September 14 message above, and also in the Department's own Policy 463 § 463.6 ("ACCOUNTABILITY"), which observes its safeguards "(Civil Code § 1798.90.51; Civil Code § 1798.90.53)." Each requires the Department to "maintain reasonable security procedures and practices, including operational, administrative, technical, and physical safeguards, to protect ALPR information from unauthorized access, destruction, use, modification, or disclosure."

This list of statutes is illustrative, not exhaustive. The Department is responsible for the full scope of its own obligations under Civil Code § 1798.90.5 et seq. independent of what I cite here.

Reasonable security practices, as required by policy and law, generally include following the vendor's own compliance guidance. For reference, the Flock Privacy Policy language that prompted this request states: "Data protection and privacy laws in your jurisdiction may impose certain responsibilities on you and your use of our products. You are responsible for ensuring that you comply with all applicable laws when you use the Flock Services or products, including, where so required, to execute a mutually agreed upon data protection agreement." (<https://www.flocksafety.com/legal/privacy-policy>, version marked "Last Updated: August 1, 2025.")

Please have the City Clerk, Finance, and City Attorney's Office search their contract and vendor files for the agreement, per my September 14 message. If the search locates neither the agreement nor a record of a determination that none was required, I will proceed on the basis stated in that message.

Brian

On 2026-09-22 00:36, San Mateo Public Records Center wrote:

> --- Please respond above this line ---

>

> Hello Brian,

>

> To ensure we are on the same page and that we are searching for the
> appropriate records, could you please confirm which California statute
> you are referencing regarding the City's security obligations?

>

> Thank you,

>

> Juliana Santiago

> Management Analyst

> Police

> 650-522-7664

>
> -----
> To monitor the progress or update this request please log into the San
> Mateo Records Center [1].
>
> Links:
> -----
> [1] https://u8387795.ct.sendgrid.net/ls/click?upn=u001.PYICgxP3kfgZjR-2B4e9nPIJM-2F-2FZJ6ZuXV20aaQ-2Fm9oT0GfuwVQ0XY4Zf8DzO14DT34P-2FrJZViiJ9beoziTjTVsA-2BgPkbGr5KfDX-2Bhk-2Fr7OyakemIQtsLCNRwQEHZavWhPzTbE_OGUZgrfogYMGF60AX8yLzZOPgwby8iyRR8-2BL5B07Rjzf-2FAP5QHVLZw5aa1pORP4xfllMmOUb6Kc-2Bx0ahCjmDJ5f5pM5IHC2Ln8DI6799Tl1GYobllo2nT7p0fpBCSb3aWTS5Uwj6pXDsi3cfyvjd2ZNXfKWv1ij4XMkriI8XcyMORSb-2BXGfuIxxNF-2BztZkIxITJU5p3mLUnuhpggunvTqXASZUSQIEax1pHOi5oJ6cKPO6W1O3fGSj0b5sJGm9NE8u2uufRQv1C7UE4IvxqwivWxzzrB6c-2BXPn3K11e20B3eeo5XLZ3-2BYF-2Fiv2TiHN3317h7SwzpMXz5zlixOlgsOqNHQIQtoYKtfs8LTHGcAg-3D

On 9/21/2026 9:36:14 AM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W013278-081926

Body:

Hello Brian,

To ensure we are on the same page and that we are searching for the appropriate records, could you please confirm which California statute you are referencing regarding the City's security obligations?

Thank you,

Juliana Santiago
Management Analyst
Police
650-522-7664

On 9/14/2026 7:57:04 PM, Brian C wrote:

TO: "San Mateo Public Records Center"[sanmateoca@mycusthelp.net]
Juliana,

Thank you for the September 14 production. Your message states that "the records provided confirm the source of Hotlist Alerts from NCIC and the California Stolen Vehicle System." That is sufficient for the hot-list portion of Item 6. The City may consider that portion fulfilled, and no further batches are needed.

My primary interest is Item 1. Flock's Privacy Policy names a data protection agreement and leaves to each customer the judgment whether its jurisdiction's data-protection law requires one; the 2023 Agreement at §3.2

likewise places compliance with applicable law on the City. California's ALPR statute puts security obligations on the City as both operator and end-user, so that judgment was the City's to make. The August 31 letter's answer was "no responsive records." Based on previous CPRA responses, I anticipated that it didn't exist, but since its existence seems critical to compliance with state law, I wanted to give the City one more chance to locate it. That letter is captioned as a Department response, and the request was directed to the City Clerk, Finance, and the City Attorney's Office; please have those offices search their contract and vendor files for the agreement, under whatever title it carries. If the City determined at any point that no such agreement was required, the record of that determination is responsive as well. If the search locates neither, I will proceed on the basis that no agreement exists and no determination was made, with the August 31 letter as the record of it.

Brian

On 2026-09-14 16:58, San Mateo Public Records Center wrote:

> --- Please respond above this line ---

>

> RE: PUBLIC RECORDS REQUEST of August 19, 2026, Reference #

> W013278-081926

>

> Dear Brian C,

>

> The City received the following records request from you on August 19,
> 2026.

>

> This request seeks one document and the records surrounding it: the
> data protection agreement that Flock Safety directs its customers to
> execute. It covers January 1, 2020 through the date of production, and
> concerns the City's agreements with Flock Group Inc. d/b/a Flock
> Safety -- the 2020 service agreement, the 2023 Master Services
> Agreement, and Amendments No. 1 and No. 2.

>

> Flock's Privacy Policy, at

> <https://www.flocksafety.com/legal/privacy-policy> (version marked "Last

> Updated: August 1, 2025"), states: "Data protection and privacy laws

> in your jurisdiction may impose certain responsibilities on you and

> your use of our products. You are responsible for ensuring that you

> comply with all applicable laws when you use the Flock Services or

> products, including, where so required, to execute a mutually agreed

> upon data protection agreement."

>

> As you are aware, the Department is both an ALPR operator under

> California Civil Code § 1798.90.51 and an ALPR end-user under §

> 1798.90.53, and both sections require reasonable security procedures

> and practices -- operational, administrative, technical, and physical

> -- to protect ALPR information from unauthorized access, destruction,

> use, modification, or disclosure. Flock directs its customers to

> execute a data protection agreement where their jurisdiction imposes
> such responsibilities. This request seeks the discrete documents held
> in the City's contract, purchasing, and vendor files that would show
> whether the City did so as its vendor directs, and how that obligation
> is allocated between the two.
>
> 1. The executed "mutually agreed upon data protection agreement"
> described in the passage quoted above -- the instrument Flock's
> Privacy Policy directs its customers to execute -- whatever title it
> actually carries (data protection agreement, data processing
> agreement, data processing addendum, DPA, data security agreement, or
> similar), including all exhibits, schedules, and amendments.
>
> 2. Any template, form, model, or standard version of that instrument
> held in City or Department files, in any state -- executed,
> unexecuted, draft, or redlined.
>
> 3. The index, inventory, document list, or file listing for the Flock
> vendor file and contract file, as maintained in the City's contract
> management, purchasing, or records system -- the listing itself,
> sufficient to identify every document filed under the Flock
> agreements. Not the underlying documents.
>
> 4. Contract review checklists, contract routing or approval forms,
> contract summary sheets, and signature routing slips prepared for the
> 2020 agreement, the 2023 Master Services Agreement, and each
> amendment.
>
> 5. The City's standard contract provision, exhibit, or template
> addressing data security, data privacy, or vendor handling of personal
> information, together with any record documenting its inclusion in,
> waiver from, or omission from the Flock agreements.
>
> 6. Any Management Control Agreement, CJIS Security Addendum, or
> equivalent instrument executed with Flock or with any Flock
> subcontractor, and records sufficient to identify whether any hot list
> used by the Department within the Flock platform derives from CLETS,
> NCIC, or the Stolen Vehicle System.
>
> 7. Any copy of Flock's Privacy Policy, Terms of Service, or other
> published vendor terms maintained in the City's contract or vendor
> files, and any record identifying which version was reviewed at each
> execution.
>
> 8. Records sufficient to identify each subcontractor or third party
> Flock uses to store or process San Mateo ALPR data, and any City

> approval, review, or acknowledgment of them.
>
> 9. Any notification from Flock to the City of a data breach, security
> incident, or unauthorized access affecting San Mateo ALPR data.
>
> Every item above seeks a discrete document maintained in a contract,
> purchasing, or vendor file. No item requests a search of any email
> account, and no item is satisfied by production from the email review
> pending under W012462-040226 or under any other request. Item 3 is a
> single listing and can be produced independently of every other item.
> This request is addressed to the City. Responsive records are likely
> held by the City Clerk, by Finance or Purchasing, and by the City
> Attorney's Office. To the extent items 6, 8, or 9 are held by the
> Police Department instead, I ask that those individual items be routed
> accordingly rather than treated as non-responsive.
>
> Records held by Flock as the City's contractor are City records under
> Gov. Code § 7920.530 and City of San Jose v. Superior Court (2017) 2
> Cal.5th 608, as the Department's production of Flock platform
> event-log data under W012570-041926 confirms.
>
> A determination under Gov. Code § 7922.535 is requested within 10
> days. If any item is unclear, Gov. Code § 7922.600 provides for the
> City's assistance in identifying responsive records, and I will narrow
> on request.
>
> Brian
>
> Due to the large number of records which are associated with this
> request (Item 6), the City will send you records on a rolling
> production basis. An initial batch of records has been released and
> made available on the San Mateo Records Request Portal. You will be
> receiving more batches of responsive records in the future. Select the
> link below to view what is currently available.
>
> The records provided confirm the source of Hotlist Alerts from NCIC
> and the California Stolen Vehicle System. This portion of your request
> resulted in 134,995 records, each of which required review and, where
> applicable, redaction of information related to law-enforcement
> investigations. Following review by the City Attorney's Office, it was
> determined that portions of the requested records are exempt from
> disclosure pursuant to Government Code section 7923.600 as they
> constitute law-enforcement investigative records. A good faith and
> diligent search yield no responsive records sourced from the
> California Law Enforcement Telecommunications System (CLETS).
>

> Based on the records produced, please confirm whether the records
> provided are sufficient to address Item 6 of your request. If the
> records provided sufficiently address Item 6, please confirm that the
> City may consider this portion of your request fulfilled and close its
> review. If you believe additional records are necessary to address
> Item 6, please identify the specific information you believe is
> missing so that staff can determine whether additional responsive
> records exist.
>
> If you have any questions, please contact me using the below contact
> information.
>
> Sincerely,
>
> Juliana Santiago
>
> Management Analyst I
>
> Police
>
> (650) 522-7664
>
> -----
> To monitor the progress or update this request please log into the San
> Mateo Records Center [1].
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On 9/14/2026 4:58:01 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W013278-081926

Body:

RE: PUBLIC RECORDS REQUEST of August 19, 2026, **Reference # W013278-081926**

Dear Brian C,

The City received the following records request from you on August 19, 2026.

This request seeks one document and the records surrounding it: the data protection agreement that Flock Safety directs its customers to execute. It covers January 1, 2020 through the date of production, and concerns the City's agreements with Flock Group Inc. d/b/a Flock Safety — the 2020 service agreement, the 2023 Master Services Agreement, and Amendments No. 1 and No. 2.

Flock's Privacy Policy, at <https://www.flocksafety.com/legal/privacy-policy> (version marked "Last Updated: August 1, 2025"), states: "Data protection and privacy laws in your jurisdiction may impose certain responsibilities on you and your use of our products. You are responsible for ensuring that you comply with all applicable laws when you use the Flock Services or products, including, where so required, to execute a mutually agreed upon data protection agreement."

As you are aware, the Department is both an ALPR operator under California Civil Code § 1798.90.51 and an ALPR end-user under § 1798.90.53, and both sections require reasonable security procedures and practices — operational, administrative, technical, and physical — to protect ALPR information from unauthorized access, destruction, use, modification, or disclosure. Flock directs its customers to execute a data protection agreement where their jurisdiction imposes such responsibilities. This request seeks the discrete documents held in the City's contract, purchasing, and vendor files that would show whether the City did so as its vendor directs, and how that obligation is allocated between the two.

- 1. The executed "mutually agreed upon data protection agreement" described in the passage quoted above — the instrument Flock's Privacy Policy directs its customers to execute — whatever title it actually carries (data protection agreement, data processing agreement, data processing addendum, DPA, data security agreement, or similar), including all exhibits, schedules, and amendments.*
- 2. Any template, form, model, or standard version of that instrument held in City or Department files, in any state — executed, unexecuted, draft, or redlined.*
- 3. The index, inventory, document list, or file listing for the Flock vendor file and contract file, as maintained in the City's contract management, purchasing, or records system — the listing itself, sufficient to identify every document filed under the Flock agreements. Not the underlying documents.*
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- 7. Any copy of Flock's Privacy Policy, Terms of Service, or other published vendor terms maintained in the City's contract or vendor files, and any record identifying which version was reviewed at each execution.*

8. Records sufficient to identify each subcontractor or third party Flock uses to store or process San Mateo ALPR data, and any City approval, review, or acknowledgment of them.

9. Any notification from Flock to the City of a data breach, security incident, or unauthorized access affecting San Mateo ALPR data.

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Records held by Flock as the City's contractor are City records under Gov. Code § 7920.530 and City of San Jose v. Superior Court (2017) 2 Cal.5th 608, as the Department's production of Flock platform event-log data under W012570-041926 confirms.

A determination under Gov. Code § 7922.535 is requested within 10 days. If any item is unclear, Gov. Code § 7922.600 provides for the City's assistance in identifying responsive records, and I will narrow on request.

Brian

Due to the large number of records which are associated with this request (Item 6), the City will send you records on a rolling production basis. An initial batch of records has been released and made available on the San Mateo Records Request Portal. You will be receiving more batches of responsive records in the future. Select the link below to view what is currently available.

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Based on the records produced, please confirm whether the records provided are sufficient to address Item 6 of your request. If the records provided sufficiently address Item 6, please confirm that the City may consider this portion of your request fulfilled and close its review. If you believe additional records are necessary to address Item 6, please identify the specific information you believe is missing so that staff can determine whether additional responsive records exist.

If you have any questions, please contact me using the below contact information.

Sincerely,

Juliana Santiago
Management Analyst I
Police
(650) 522-7664

On 8/31/2026 4:09:01 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W013278-081926

Body:

RE: PUBLIC RECORDS REQUEST of August 19, 2026, Reference # W013278-081926

Dear Brian C,

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1. The executed "mutually agreed upon data protection agreement" described in the passage quoted above — the instrument Flock's Privacy Policy directs its customers to execute — whatever title it actually carries (data protection agreement, data processing agreement, data processing addendum, DPA, data security agreement, or similar), including all exhibits, schedules, and amendments.

2. Any template, form, model, or standard version of that instrument held in City or Department files, in any state — executed, unexecuted, draft, or redlined.

3. The index, inventory, document list, or file listing for the Flock vendor file and contract file, as maintained in the City's contract management, purchasing, or records system — the listing itself, sufficient to identify every document filed under the Flock agreements. Not the underlying documents.

4. *Contract review checklists, contract routing or approval forms, contract summary sheets, and signature routing slips prepared for the 2020 agreement, the 2023 Master Services Agreement, and each amendment.*
5. *The City's standard contract provision, exhibit, or template addressing data security, data privacy, or vendor handling of personal information, together with any record documenting its inclusion in, waiver from, or omission from the Flock agreements.*
6. *Any Management Control Agreement, CJIS Security Addendum, or equivalent instrument executed with Flock or with any Flock subcontractor, and records sufficient to identify whether any hot list used by the Department within the Flock platform derives from CLETS, NCIC, or the Stolen Vehicle System.*
7. *Any copy of Flock's Privacy Policy, Terms of Service, or other published vendor terms maintained in the City's contract or vendor files, and any record identifying which version was reviewed at each execution.*
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Records held by Flock as the City's contractor are City records under Gov. Code § 7920.530 and City of San Jose v. Superior Court (2017) 2 Cal.5th 608, as the Department's production of Flock platform event-log data under W012570-041926 confirms.

A determination under Gov. Code § 7922.535 is requested within 10 days. If any item is unclear, Gov. Code § 7922.600 provides for the City's assistance in identifying responsive records, and I will narrow on request.

Brian

We have made a good faith and diligent effort to complete your request, in which responsive records have been collected. These records and the Department's full response letter are available on the San Mateo Records Request Portal. Select the link below to view.

The City has completed its response to your request and now considers this record request **W013278-081926** closed.

If you have any questions, please contact me using the below contact information.

Sincerely,

Kelly O'Keefe
Police Technical Services Administrator
Police
(650) 522-7709

On 8/19/2026 9:03:27 PM, San Mateo Public Records Center wrote:



Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 8/19/2026 and given the reference number **W013278-081926** for tracking purposes.

Record(s) Requested: This request seeks one document and the records surrounding it: the data protection agreement that Flock Safety directs its customers to execute. It covers January 1, 2020 through the date of production, and concerns the City's agreements with Flock Group Inc. d/b/a Flock Safety — the 2020 service agreement, the 2023 Master Services Agreement, and Amendments No. 1 and No. 2.

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A determination under Gov. Code § 7922.535 is requested within 10 days. If any item is unclear, Gov. Code § 7922.600 provides for the City's assistance in identifying responsive records, and I will narrow on request.

Brian

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the [San Mateo Records Center](#).

On 8/19/2026 9:03:26 PM, Brian C wrote:

Request Created on Public Portal